

Module 2: Renaissance and Early-Modern Political Theory — from Cosmopolis to *Stato* to the Social Contract

Political & Economic Thought — Master Notes · by Jakob V. Stangel

Readings: McClelland, *A History of Western Political Thought*, ch. 11 (Hobbes, pp. 191–228) · Grotius (Boisen, *Political Thinkers*-style chapter) **Focus:** Thomas Hobbes: *Leviathan and the social covenant* · Hugo Grotius *and the world system of states*.

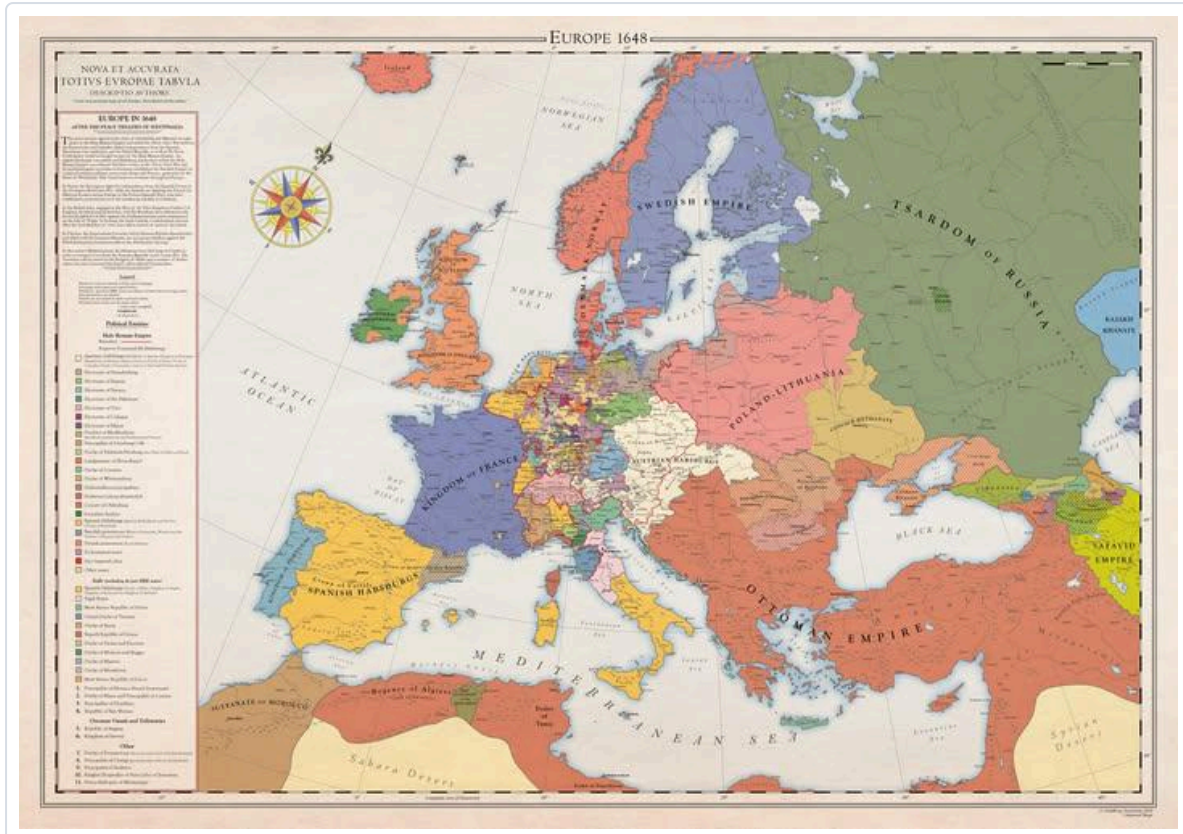
Theme of the module: the long shift from the medieval **Cosmopolis** (one universal Christian moral-legal order — Module 1's Aquinas) to the modern world of **sovereign states**. Three moves: **Machiavelli** frees politics from morality and invents the autonomous *stato* → **Hobbes** gives that state a **contractual foundation** and a *science* of absolute **sovereignty** → **Grotius** builds the **world system of states** bound by **natural law** (the birth of international law).

★ **The heart of the module — each thinker in one idea** (keep these in view):

- **Machiavelli → the *stato*:** politics is its own domain, freed from ethics; built on a fixed, pessimistic view of human nature.
- **Hobbes → the social covenant:** from a **state of nature** ("war of all against all") rational egoists **covenant with each other** to authorise an **absolute sovereign** (Leviathan) — anything less collapses back into war.
- **Grotius → the world system of states:** a **natural law** of universal rights & duties (binding "even if God did not exist") governs sovereigns too — grounding property, the free sea, and a **just-war** international order.

Lecture frame (Popp-Madsen — from the deck). (*The deck is the skeleton; the readings below add the flesh.*)

- **The big story — how political power kept being re-grounded:** Greek antiquity = politics is part of **ethical life** (the *zoon politikon*, the good life) → **Middle Ages** = the **Church** is the authority, religion supplies the rules, **God is the ultimate sovereign** → **17th-century early modernity** = the ground shifts to **power, conflict and self-interest**, and to **political institutions and the state**. Hobbes and Grotius are the thinkers of that last shift.
- **The Westphalian system** (the world Hobbes & Grotius write into): after 1648 Europe becomes a set of **sovereign states**, each with ① **exclusive sovereignty over its own territory**, ② **non-interference** in others, and ③ **legal equality** of states — and crucially **no supranational authority** above them (a rejection of the Catholic Church and Holy Roman Empire). *In plain terms:* the map stops being one Christendom and becomes a patchwork of independent states that recognise **no boss above them**.
- **The hinge between the two thinkers:** Hobbes solves order *inside* the state (domestic anarchy → sovereign). **But what governs the space between sovereign states**, where there is no super-sovereign? That gap is exactly what **Grotius** tries to fill with international law.



How to read it (the Westphalian map). Each colour is a sovereign state after 1648. The takeaway isn't the individual borders but the **pattern**: Europe is now a **mosaic of many independent sovereigns** — the fragmented **Holy Roman Empire** (centre) is a jumble of statelets — with **no emperor or pope ruling over the whole**. This is the "international anarchy" Hobbes says has no cure and Grotius says can be tamed by a **law of nations**.

McClelland — Hobbes: *Leviathan* and the Social Covenant

Chapter résumé

McClelland reads Hobbes's *Leviathan* (1651) as "*the first masterpiece of social-contract theory*" — yet a deeply **untypical** one: contract language was invented to justify *resistance*, but Hobbes turns it into an argument for **absolute government**, "driving a coach and four through all the libertarian conclusions." Written amid the **English Civil War**, it builds the state **geometrically** from a bleak view of human nature: from a **state of nature** ("war of every man against every man," life "solitary, poor, nasty, brutish, and short"), self-interested **rational egoists** reason their way to a **covenant** transferring their unlimited **Right of Nature** to a **Sovereign** who is *not himself a party* to the contract — and whose power must therefore be **absolute and undivided**, because anything less slides back into the **state of nature**.

★ The heart: Hobbes's chain — **state of nature** (war of all against all) → the **Right of Nature** is a curse everyone would shed → reason's **Law of Nature** says "seek peace" → so men **covenant with each other** to authorise one **Sovereign** (who stays outside the deal) → sovereignty must be **absolute & undivided**, or you're back in the war.

The red thread. Read the whole argument as a **geometry**: the *axiom* is man as a **rational egoist**; the *theorems* are the Laws of Nature, the Social Contract, and absolute Sovereignty. For any step ask: *how does self-interested fear drive it, and why does it force the conclusion that the sovereign must have everything?*

Key concepts / "modes" to use

- State of nature — no government → "war of all against all."
- Right of Nature (a *permission*: unlimited liberty to preserve yourself) vs Law of Nature (a *command* of reason: seek peace).
- The social covenant — every man with every man; the sovereign is **beneficiary, not party**.
- **Sovereign / Leviathan** — the "mortal god"; **authorisation** ("what my agent does, I do"); **absolute & undivided**.
- Iniquity vs injury · sovereignty by institution vs acquisition · the efficiency constraint.

Section-by-section main points

| The Machiavelli bridge — the autonomous *stato*

Core: Machiavelli supplies the ground Hobbes builds on — **politics as its own domain**, cut loose from morality and religion, resting on a fixed, pessimistic view of human nature.

- The Prince: no natural law, no scripture — Machiavelli simply "treats those assumptions as if they were not there." He wants **axioms that always work**, so he assumes men are "always very bad" ("heads he wins, tails he doesn't lose").
- **Fear over love** — "*treat everybody as a potential assassin*"; better to be feared than loved (Caligula's *Oderint dum metuant* — "let them hate, provided they fear"). **Virtù vs Fortuna**: skill meeting luck. (McClelland: "*Machiavelli anticipates Hobbes*.")

| Hobbes's method — a geometry of man

Core: Hobbes builds politics like **Euclid** — from axioms about human nature to theorems — using the **new science** (matter in **motion**).

- **Materialist psychology**: humans are objects in **motion** (appetite/aversion); happiness is continual motion, not Aristotle's "rest." **Rational egoists** — Macpherson's "possessive individualists," "market-men" (the striking claim: "*a rising bourgeoisie requires an absolutist state*").

| The state of nature — the war of all against all

Core: strip away government and you get **rough natural equality** → mutual fear → a **war of all against all** — a *disposition* to fight, not constant battle.

- *In plain terms*: imagine no police, no courts, no laws. Since **anyone can kill anyone** (even the weakest can kill the strongest by stealth or in their sleep), nobody can ever feel safe. Everyone reasons that their **only security is to strike first / dominate others** — but everyone is thinking the same, so you get permanent mutual suspicion. It's "war" not because people fight all the time, but because the **threat never lifts** (like bad weather: not constant rain, but a settled *inclination* to storm).

- **Equality:** "no man is so strong that he cannot be killed by another by stealth" → everyone is a threat. Three drivers: **competition** (gain), **diffidence** (fear/safety), **glory** (reputation). "*Part of man's nature is anti-social, while the other part can only be satisfied through social living.*"
- **War as a condition:** "*the nature of War consisteth not in actuall fighting, but in the known disposition thereto.*" The famous verdict: life is "**solitary, poore, nasty, brutish, and short.**"

Right of Nature vs Law of Nature

Core: the **Right** of Nature is a *permission* (do anything to survive); the **Law** of Nature is a *command* of reason (**seek peace**) — and reason tells you to *give up* the unlimited right.

- **Right of Nature** = unlimited liberty of self-preservation — but since *everyone* has it, it's "a millstone" you'd be wise to shed.
- **Law of Nature** (a "precept found out by reason" forbidding self-destruction): 1st — "**seek peace, and follow it**"; 2nd — **lay down your right to all things, as far as others will too**. In the state of nature these bind *in foro interno* (in conscience) but not *in foro externo* (in act) — no one dares go first.

★ The social covenant — how you escape the state of nature

Core: you **can't make law by agreement** (who'd go first? who'd enforce it?) — so instead, **by agreement choose a law-giver:** everyone **covenants with everyone else** to transfer their Right of Nature to, and authorise, one **Sovereign**.

- **The key twist:** the covenant is **of every man with every man** — NOT with the sovereign. The sovereign is the **beneficiary, not a contracting party**, so *he makes no promise and can never "breach" the contract*. Everyone makes the leap into civil society **except the sovereign, who stays in the state of nature**.
- **Authorisation / representation:** the people **authorise everything the sovereign does** → "*what my agent does, I do... his will is my will.*" A people has a will **only through its representative** (the sovereign).
- **Institution vs Acquisition:** by **covenant** (the paradigm case) or by **conquest** (the ordinary historical case) — same result, because **fear doesn't invalidate a contract** ("all contracts are made through fear"; the man on a sinking ship "very willingly" throws his goods overboard).

The Sovereign / Leviathan — absolute, undivided, a "mortal god"

Core: the commonwealth is **Leviathan**, an "artificial man" / "**mortal god**"; because the sovereign is authorised by all, his power must be **absolute and undivided**.



How to read it (the *Leviathan* frontispiece, 1651). This one picture is Hobbes's argument. The **giant sovereign** is literally made of the **multitude** — hundreds of individuals whose authorisation composes his body (the "artificial man"). He towers **over the land** (he holds the peace of the whole commonwealth), and he grips **both swords of power at once: a sword** (civil/temporal authority, left) **and a bishop's crosier** (religious/spiritual authority, right) — Hobbes's point that sovereignty must be **undivided**, ruling church *and* state. The Latin banner (Job 41) reads "*there is no power on earth to compare with him.*" The panels below mirror the two powers — civil (castle, crown, cannon) vs ecclesiastical (church, mitre, thunderbolts of excommunication).

- **Sovereignty is an office of the state, not the ruler's personal privilege (Popp-Madsen).** Hobbes describes the **rights of the office of sovereignty (i.e. the state)**, not the "advices" a particular ruler should follow. *In plain terms:* he's defining what **the position of Sovereign** may do — whoever fills it — not giving one king personal tips. This is why he says he founds **modern political thought**, and why the deck asks: "**Is Hobbes the first liberal?**" — his absolute state is built from **individuals' voluntary choices**, and the powers belong to the **institution**, not the person.
- **Iniquity vs injury** (crucial): the sovereign, being a man, *can* act wickedly (**iniquity**) — but he can never do a subject an **injury** (an *unlawful* act), because he makes the law and the subject authorised him → "the supposed injury is something I have done to myself."

- Powers include: law, courts, war & peace ("the sword of justice is also the sword of war"), **censorship** (he even fixes the meaning of "just" and "unjust"), control of religion, appointments, honours — and it **repudiates all prior covenants, including any "covenant with God."**
- **The only right you keep = self-preservation:** "no man is obliged to walk unbound to the scaffold." Otherwise a rational man sheds his Right of Nature entirely.

Why absolutism — anything less collapses into war

Core: you can't limit the sovereign by contract, and you can't set up a judge over him without an infinite regress ("why stop at three?") that ends in "**the state of nature by another name.**"

- Stark disjunction: "Either you choose to live under a Sovereign or you don't" — divided/limited sovereignty just breeds rival sovereigns → **civil war**.
- **The real (non-legal) limit — the efficiency constraint:** the sovereign's *powers* are unlimited but his *power* (capacity to enforce) is not. Order holds **only while subjects fear the sovereign more than they fear each other**; when that reverses, "the rebellion has already happened internally."
- **International anarchy:** "*covenants without the sword are but breath*" — with no super-sovereign over states, there's no peace between them (McClelland: why the League of Nations/UN are "bound to fail"). (*This is exactly the gap Grotius tries to fill.*)
- (*Aside — the **political-obligation controversy**: does Hobbes give only **prudential** reasons to obey, or a real **moral** duty? If the Laws of Nature are genuinely **God's commands**, obligation is moral; if "mere dictates of prudence," you obey only when watched.*)

Cases & examples

- **English Civil War (1642–51):** each attribute of sovereignty maps onto a live dispute — control of the **army/militia** (the 1642 trigger), **religion**, the **Common Law** "ancient constitution," the sale of honours. *Leviathan* was double-edged: usable by Charles I, Cromwell, and Charles II.
- **The Norman Conquest:** Hobbes implies William was "a true Sovereign by the free consent of the defeated English" at Hastings — demolishing the Whig "Norman Yoke" story (sovereignty by **acquisition**).
- **Grimmelshausen's *Simplicissimus* / the Thirty Years War** — the real-world picture of the state of nature (many sovereigns fighting for mastery).

Key terms

Term	Meaning
State of nature	Life without government → "war of all against all"
Right of Nature	<i>Permission</i> : unlimited liberty to preserve yourself
Law of Nature	<i>Command</i> of reason; 1st = seek peace
Social covenant	Every man with every man authorises a sovereign
Sovereign as beneficiary not party	Why the sovereign can't "breach" the contract
Leviathan / "mortal god"	The commonwealth as an artificial person
Authorisation	"What my agent does, I do" — a people wills only via its sovereign
Iniquity vs injury	Wickedness (possible) vs an <i>unlawful</i> act (impossible to a subject)
Institution vs acquisition	Sovereignty by covenant vs by conquest
Efficiency constraint	Order lasts only while subjects fear the sovereign most

Exam pointers

- Run **Hobbes's chain** cold: state of nature → right vs law of nature → **the covenant of every man with every man** → absolute sovereign.
- Nail *why* the sovereign is **beneficiary, not party**, and what follows (no breach, no right of resistance beyond self-preservation).
- Explain the **iniquity vs injury** distinction and the **regress argument** for why sovereignty can't be divided.
- Use "*covenants without the sword are but breath*" to link Hobbes to the **international** problem Grotius addresses.

Grotius — Natural Law and the World System of States

Chapter résumé

Hugo Grotius (1583–1645), Dutch jurist, aimed to "*formulate a set of universal rights and duties that would secure peace by constraining states in their internal and external relations.*" Amid the confessional chaos of the Thirty Years War he **rehabilitated natural law** on a **minimal, universal** basis everyone could accept, and applied it to the relations *between* sovereigns — earning him the title "**father of modern international law.**" His key move: natural law's obligatory force holds "even if God did not exist" (*etsi Deus non daretur*); from human **natural rights** (self-preservation, and the derived rights of **property** and **punishment**) he builds an order of sovereign states bound by a **law of nations** and a theory of **just war**. Unlike Hobbes, Grotius holds humans are **naturally sociable**.

★ **The heart:** there is a **universal natural law** — knowable by reason, binding even "if God did not exist" — that gives individuals **natural rights** (self-preservation → property → punishment) and applies **equally to states**. That's the foundation of the **world system of states**: free seas, property from occupation, and a **just-war** order in which even war is subject to law.

The red thread. Grotius scales **one idea** — **universal natural law/rights** — **up from individuals to states**. For each topic ask: *what does natural law permit or require here, and how does that constrain sovereigns?* Keep contrasting with **Hobbes**: same self-preservation start, but Grotius's humans are **sociable**, his natural law is genuinely **obligatory**, and his sovereign *can* be bound.

Key concepts / "modes" to use

- **Natural law** — universal, immutable principles; known **a priori** (right reason) & **a posteriori** (agreement of nations); source = God, content = human nature.
- The "impious hypothesis" (*etsi Deus non daretur*) — **natural law binds even if God did not exist**.
- **Natural rights** (subjective — a *power* one "has"): self-defence & self-preservation → **property & punishment**.
- **Mare Liberum** — the free sea as a **state of nature** (grounds free navigation & trade).
- **Appetitus societatis** — humans are **naturally sociable** (vs Hobbes).
- The world system of states + just war (four just causes) + the **right to punish**.

Section-by-section main points

Natural law — secularised and universal

Core: **natural law** = **universal, unchanging moral principles**, the same for everyone everywhere, that we work out by **reason** — a *minimal* moral basis everyone could accept *despite* Europe's ferocious religious splits.

- *In plain terms:* Grotius wanted a set of moral rules so basic that **Catholics, Protestants and non-Christians could all agree on them**, so they could settle disputes without first agreeing about God. That's the whole point of grounding law in **reason + human nature** rather than in one church's doctrine.
- **How we know its content** — **two routes: a priori** (by **right reason**, deduced from our rational and social nature) *and* **a posteriori** (by looking at the rules "to which all civilised nations subject" — because "*a universal effect requires a universal cause*").
- **Dual foundation** — **reason and God, each standing alone**: its **content** comes from human nature; its **obligatory force** rests on *both* right reason *and* God, "each independently able to carry the weight." Grotius explicitly loosens the medieval tie — **natural law is not** simply part of God's "eternal law" (contrast **Suárez**, who put the Ten Commandments inside **natural law**).
- *(Background debate he sidesteps — **voluntarism vs intellectualism**: is a thing good *because God wills it* (voluntarism) or does *God will it because it is good* (intellectualism)? Finnis reads Grotius as **mediating**: the **content** of **natural law** can be worked out on its own, but its **binding force** still comes from the divine will.)

★ The "impious hypothesis" — *etsi Deus non daretur*

Core: the famous line — natural law "*would take place, though we should even grant... that there is no God.*" Its obligatory force seems **independent of God's existence**.

- *In plain terms:* Grotius runs a **thought-experiment** — "*pretend*, just for argument, that there's no God: the basic moral rules would **still** hold." The point isn't to deny God; it's to show the rules are **so solid that people who disagree about religion can still all accept them**. That's how you get a law everyone in a war-torn, multi-faith Europe can share.
- **The qualification (don't miss it):** the *very next sentence* names God as Creator "to be obeyed in all things" — so it's **not atheism** (his translator Barbeyrac was "so perturbed" he added a footnote insisting on God). **Haakonssen/Boisen:** it's a **deliberately vague device** to lift natural law *above* confessional quarrels, not a metaphysical denial. **Source of the law = God; contents = human nature.** (*This is the move that starts to secularise natural law — hugely influential.*)

Natural rights — the *suum*, and rights as a power

Core: rights are **derived from facts about human nature** (chiefly sociability); a **subjective right** is "*something the individual possesses*" — a **power (*potestas*) over oneself** (liberty) or a claim over others/things. Grotius is "the first to give a systematic account of **subjective** natural rights."

- *In plain terms* — *the big shift:* the old idea of "right" meant "**the right thing to do**" (an objective rule out there). Grotius flips it to a right as **something you have** — a personal power/possession you can point to and claim ("*this is mine, my liberty, my property*"). That "**rights as possessions**" idea is the seed of the whole modern language of individual rights. Grotius's own words: a right is "*a moral Quality annexed to the Person, enabling him to have, or do, something justly.*"
- Man is by nature **free and *sui iuris*** (= *his own master, subject to no one*); the starting point is the ***suum*** ("*one's own*" — your life, body, liberty, possessions). **Two primary rights:** self-defence & self-preservation → **two secondary claim-rights:** property and punishment (these are the **four rights that can justify war**).
- **Rights are limited by a duty** not to injure others: "*the very nature of injustice consists in nothing else but the violation of another's rights.*" (*He separates **justice = respecting others' rights** — what law can enforce — from **higher virtues** like generosity/mercy, which it can't; the state secures the first, not the second.*)

The Free Sea (*Mare Liberum*) — the sea as a state of nature

Core: the **sea can't be owned** — it's "by nature open to all"; the high seas function like a state of nature, grounding a natural right to **free navigation and trade**. (*Mare liberum* = "free sea," against *mare clausum* = "closed sea.")

- *In plain terms:* the sea is different from land. **Land** you can physically **occupy** and fence off, so (by agreement) it can become private property. **The sea can't be occupied or fenced** — so it stays **everyone's**, and no state may shut others out of it. Hence **freedom of navigation and trade for all**.
- **Why it was written** — the *Santa Catarina* / **VOC:** a defence of the Dutch **breaking Portugal's monopoly** in the East Indies → a natural-law argument for **free international trade** (Grotius: undisturbed **commerce** is "part of the very fabric of humankind").
- **He demolishes Portugal's three claimed rights** — possession, navigation, trade:

- **Possession:** distinguishes **occupation from discovery** — "*first sighting is not a claim to title*." You can only claim what was **nobody's** (*res nullius*) before; but the East Indies **weren't** nobody's — **native rulers already possessed their lands** (echoing **Vitoria**: the Spanish "got no more authority over the Indians... than the Indians would have over the Spaniards" had they sailed to Spain). Nor could a **papal grant** (Alexander VI's 1493 bulls) give title — the pope has no temporal authority over non-Christians.
- **Navigation & trade:** "*God gave all things not to this man or that but to mankind*"; "**no man hath the power to grant a privilege against mankind**." So the sea stays common and trade can't be lawfully blocked.
- **vs Hobbes:** Grotius uses the state of nature **not to explain political authority** (as Hobbes does), but as a *device* to model the **norms of the high seas** — same concept, different job.

Property — occupation vs *dominium*

Core: we have a God-given **common use-right** (occupation) by nature; **private property** (*dominium*) is a **human convention** requiring agreement and law.

- "*God gave all things not to this man or that man, but to mankind*." Property is "an invention of societies." The question isn't *how to justify* private property (Locke's later question) but *the conditions under which it's permissible* — with a **right of necessity** (in extreme hardship you may access another's property) that puts **natural rights above civil rights**.

Sociability — *appetitus societatis* (the anti-Hobbes)

Core: humans have a natural **desire for society** (*appetitus societatis*) — an inclination to live peaceably with their own kind. This is Grotius's fundamental break from Hobbes.

- *In plain terms:* where **Hobbes** starts from people who are basically **dangerous to each other** (→ you need an all-powerful sovereign to keep the peace), **Grotius** starts from people who **naturally want to live together** peaceably (the Stoic *oikeiōsis*). So Grotius flatly rejects the line that "every creature only seeks its own private advantage." Same starting concern (self-preservation), **opposite view of human nature** → a much less absolutist politics.
- **Sociability is "thin," on purpose.** Because man is sociable, **keeping social order is fundamental to law** — but critics (Haakonssen, Harvey) call it a "**meagre**," **leave-others-alone** sociability: essentially *leave others to the enjoyment of their suum as long as they leave you to yours*. That thinness is deliberate — a **minimalist** account that avoids taking sides on *what the good life is* (again, to sidestep religious quarrels). We're also pushed together by **need** ("our lack of things").
- **Politics is built by voluntary agreement** — natural jurisdiction lies with the **individual**, "not a king or a pope." **Troubling corollary:** because you own your liberty, Grotius says you may **contract it away** — even into **slavery/servitude** (to escape death, debt or conquest). This let **Rousseau** brand him "**an apologist for absolutism**"; and Grotius allows only a **narrow right of resistance** — reserved for when the sovereign **breaks the founding contract**.

★ The world system of states — just war & the right to punish

Core: universal natural law applies **equally to states**; a **law of nations** with authority to arbitrate wars makes an ordered **society of states** — and even war is **subject to law**.

- *In plain terms:* Grotius's big claim against Hobbes — the space *between* states **need not be lawless**. Law rests on **human rationality**, not on a sovereign's will, so **the same natural law that binds individuals binds states too**, even though there's no world government to enforce it. That's the birth of **international law**.
- ***The Rights of War and Peace* (1625):** subject international relations, incl. war, to the **rule of law**. War is "*an instrument of right... undertaken for the sake of peace*": **just = the execution of a right; unjust = the execution of an injury**. "*Where the methods of justice cease, war begins.*"
- **Four just causes of war (*jus ad bellum*):** ① **self-defence** · ② **self-preservation** · ③ **recovery of property / a debt** · ④ **punishment**. (*A state has a right but only an "imperfect duty" to punish — it may act, but isn't obliged to.*)
- **Restraint in war (*jus in bello*):** a middle ground (*temperamenta*) between Erasmus's pacifism (which "bends the crooked stick too far the other way") and **unlimited war** — "just wars are those wherein rules are observed."
- **The right to punish** (central to international order): derived from natural law (not mere revenge). Against Vitoria (who said conquistadors *couldn't* punish the American Indians for want of jurisdiction), Grotius argues "*war may be waged against those who sin against nature*," since nature "*has jurisdiction over the whole of mankind*." But he **warns against using punitive war as a pretext** ("civilising barbarous peoples"), and punishment must be **forward-looking/deterrent**, not vengeful (Plato: "no wise man punishes because an offence was committed, but that it may not be committed again").

★ **Worked example — Grotius's just war today: UN Article 51 & Putin's Ukraine war (from the deck).** Grotius's categories are *still the language of modern international law*. **UN Charter Article 51** guarantees "the inherent right of individual or collective **self-defence** if an armed attack occurs" — Grotius's just-cause ① in treaty form. Lawyers add two Grotian-style limits for **anticipatory self-defence**: **necessity** (the threat is imminent, no peaceful option) and **proportionality** (response fits the threat). **Putin (24 Feb 2022)** framed the invasion of Ukraine *precisely in this vocabulary*: he claimed "we have been left with **no other way to defend Russia**," invoked "**Article 51 of the UN Charter**," said the Donbas "People's Republics" had **appealed for help** (collective self-defence), and cast the war as **punishment** ("prosecution of those who committed crimes," "de-Nazification"). → *This is exactly the danger Grotius flagged: the just causes (**self-defence** and **punishment**) are the ones most easily turned into a **pretext**. Grotius gives you both the framework and the warning.*

Legacy

Core: "**father of international law**" (a title cemented by the 20th-c. jurist **Lauterpacht**; the term "international law" itself was coined by **Bentham**), and a pillar of the **social-contract tradition**.

- Influenced **Hobbes** (Tuck: Hobbes's philosophy is "a Grotian theory"), **Locke** (the natural right to **punish**), **Pufendorf**. *Contested legacy:* his **occupation/dominium** and **punishment** doctrines were later "invoked to rationalise European **empire**" — "empire is an inescapable feature of early-modern political thought."

Key terms

Term	Meaning
Natural law	Universal immutable principles; source = God, content = human nature
Impious hypothesis (<i>etsi Deus non daretur</i>)	Natural law binds "even if God did not exist"
Natural (subjective) right	A <i>power/potestas</i> one "possesses" over oneself or a claim on others
<i>Suum / sui iuris</i>	What is one's own / subject to no one (natural liberty)
<i>Mare Liberum</i>	The free sea — common to all, a "state of nature"
Occupation vs <i>dominium</i>	Common use-right (natural) vs private property (conventional)
<i>Appetitus societatis</i>	The natural human desire for society (vs Hobbes)
Just war (<i>jus ad bellum</i>)	4 just causes: self-defence, self-preservation, recovery/debt, punishment
Right to punish	Derived from natural law; enforces order among individuals & states
Law of nations / society of states	Universal natural law applied to sovereign states

Exam pointers

- Explain the impious hypothesis precisely (natural law "even if God did not exist") — and the qualification (not atheism; a universality device).
- Trace the **rights chain**: *suum* → self-preservation → **property** (occupation vs *dominium*) → **punishment**.
- Use *Mare Liberum* as the worked example (sea as state of nature → free trade).
- State the four just causes of war + the right to punish + Grotius's **restraint** (vs Vitoria; vs Erasmus).

★ Hobbes vs Grotius — the module's payoff

Core: both are pillars of **social-contract** theory and both start from **self-preservation** — but they split on **human nature**, and that split drives everything.

	Hobbes	Grotius
Human nature	Naturally in conflict → "war of all against all"	Naturally sociable (<i>appetitus societatis</i>)
Natural law	Reduced to self-security — the way <i>out</i> of the state of nature	Genuinely obligatory ; universal (binds "even if God did not exist")
State of nature — used for	To explain the origin of political authority	Not authority <i>per se</i> — a device (e.g. the free seas / justifying a war)
The sovereign & the contract	Sovereign is not a party → no breach, (almost) no right of resistance	Sovereign can be a party → a narrow right of resistance in extreme tyranny
Main worry	Domestic order (avoiding civil war)	International order (a law-governed society of states)
Legacy	Absolutism; the "science of the state"	International law; natural rights; (contested) empire

Where they meet: Grotius's line that there's no order without enforcement echoes Hobbes's "*covenants without the sword are but breath*" — but Grotius thinks natural law + sociability can bind sovereigns **without** a world-Leviathan, which is exactly what Hobbes denies.

★ Fun facts & memorable details

Sticky bits from Module 2 (Hobbes & Grotius).

Hobbes

- Life in the state of nature is "**solitary, poore, nasty, brutish, and short.**"
- The commonwealth is a "**mortal god.**"
- "**Covenants without the sword are but breath**" — Hobbes's one-line theory of international anarchy.
- "**Hobbes and Fear were born twins**" — born prematurely in **1588**, his mother's labour supposedly brought on by news of the **Spanish Armada**. Yet he was reportedly cheerful and **died at 91**; Charles II gave him a pension and enjoyed watching wits bait "**the Bear.**"
- He **discovered Euclid by accident** in a gentleman's library — and built *Leviathan* like a geometry.

Grotius

- The **impious hypothesis**: natural law would hold "*though we should even grant... that there is no God.*"
- Child prodigy**: at the University of **Leiden** aged **11**; a law degree at ~16; Henry IV called him "*the miracle of Holland.*"
- The book-chest escape**: sentenced to life in prison, he **escaped in 1621 hidden in a chest of books.**

- The **VOC** hired him to justify seizing the Portuguese carrack *Santa Catarina* — a prize worth ~**3 million guilders** ($\approx$ the entire annual revenue of the English government that year).
- "**International law**" as a term was coined by **Bentham**; Grotius's "father of international law" title was cemented by the 20th-c. jurist **Lauterpacht**.
- He **died in 1645 after surviving a shipwreck** on the way home from serving Queen Christina of Sweden.